

R. 58(4) EPC 1973 (R. 82(1) EPC) precluded an opposition division from giving decisions on substantive issues in the opposition before sending a communication under R. 58(4) EPC 1973, and before "deciding to maintain the patent in amended form". For example, an opposition division could during the course of an opposition make a (final) interlocutory decision (either orally or in writing) that a particular proposed amendment contravened Art. 123 EPC. Similarly, an opposition division could make a (final) interlocutory decision during an opposition that the main claim, for example, of the opposed patent could not be maintained. Such a **substantive interlocutory decision** was not a decision actually to maintain the patent in amended form, but was preliminary to such a decision. The taking of such substantive interlocutory decisions during the course of opposition proceedings was desirable both in order to move the proceedings forward towards a conclusion, and, in appropriate cases as envisaged in Art. 106(3) EPC 1973 (Art. 106(2) EPC), to allow a party to appeal such an interlocutory decision before the opposition proceedings were terminated. It was further held that where a final substantive decision had been given, an opposition division had no power thereafter to continue examination of the opposition in relation to the issues which were the subject of that decision. Further submissions from the parties relating to such issues were inadmissible.

In T. 89/90 (OJ 1992, 456) the opponents had lodged objections to an interlocutory decision finding that the patent as amended and the invention to which it related met the requirements of the EPC. The legal basis for interlocutory decisions was provided by Art. 106(3) EPC 1973. The board observed that the EPC contained no general rules as to when an interlocutory decision could or should be delivered. The relevant department therefore had to use its discretion in judging whether an interlocutory decision was appropriate in an individual case. This involved weighing up various considerations such as whether an interlocutory decision would accelerate or simplify the proceedings as a whole (clarifying a disputed question of priority, for example, could be of key importance for the form and length of the subsequent proceedings) and clearly also included the issue of costs. In the board's view, it was clear that the established practice of delivering appealable interlocutory decisions under Art. 106(3) EPC 1973 (Art. 106(2) EPC) where a patent was maintained as amended was based on the weighing up of such cost aspects. The board concluded that this practice was both formally and substantively acceptable.

In G. 9/92 (OJ 1994, 875), the Enlarged Board of Appeal set out the implications of an admissible appeal against an interlocutory decision of the opposition division concerning maintenance of the patent in amended form, first, where the sole appellant is the patent proprietor and, secondly, where the sole appellant is the opponent. In the first case, neither the board nor the non-appealing opponent as a party as of right may challenge the maintenance of the patent as amended in accordance with the interlocutory decision. In the second case, the patent proprietor is primarily restricted to defending the patent in the form in which it was maintained by the opposition division. The board may reject as inadmissible any amendments proposed by the patent proprietor as a party as of right if they are neither appropriate nor necessary. For further details of the prohibition on *reformatio in peius* and its application in board decisions, see chapter V.A.3.1.

D. Limitation/revocation

1. Limitation/revocation – Article 105a-105c EPC	1264
2. Requests for revocation during opposition and opposition appeal proceedings	1264

1. Limitation/revocation – Article 105a-105c EPC

With the entry into force of the EPC 2000, Art. 105a EPC has been introduced, pursuant to which a European patent may be revoked or limited at the request of the proprietor. Limitation can be achieved by an amendment of the claims. The effect of a successful limitation or revocation is that the patent is limited or revoked ab initio (Art. 68 EPC) and in respect of all the Contracting States in which it has been granted. It takes effect on the date on which the mention of the decision to limit or revoke is published in the European Patent Bulletin (Art. 105b(3) EPC, T 646/08, T 2177/12). The nature of this procedure, which is ex parte, lies somewhere between the examination and opposition proceedings (G 3/14, OJ 2015, A102).

There is no time limit as to when the request for limitation/revocation can be made. However, it is a precondition that no opposition proceedings (including opposition appeal proceedings) in respect of the patent are pending (Art. 105a(2) EPC). If they are, then the request is deemed not to have been filed (R. 93(1) EPC). If limitation proceedings are pending at the time of the filing of an opposition, the limitation proceedings are terminated (R. 93(2) EPC). If a patentee wishes to revoke his patent whilst opposition proceedings are ongoing, he may do so but not by using the procedure set out in Art. 105a-105c EPC (see in this chapter IV.D.2.). If he wishes to limit his patent, he may be able to do so by amending it in the course of the opposition and opposition appeal procedure.

The decision as to whether a request for limitation or revocation under Art. 105a EPC is granted is taken by the examining division (R. 91 EPC). If the request is admissible, the examining division examines whether the amended claims constitute a limitation of the claims of the European patent as granted or amended, and whether they comply with Art. 84, 123(2) and 123(3) EPC (R. 95(2) EPC; see T 2830/18). No examination of the claims with regard to Art. 52-57 EPC is foreseen. The decision of the examining division is appealable before the technical boards of appeal.

In T 2830/18 the only claims that had been amended compared with the patent as granted were claims 8 and 9, so these were the only claims that needed examining.

2. Requests for revocation during opposition and opposition appeal proceedings

The procedure for limitation/revocation pursuant to Art. 105a-105c EPC is not available during opposition and opposition appeal proceedings. However, a patent may still be revoked during such proceedings at the request of the patent proprietor. Art. 105a(2) EPC

does not prevent the proprietor from filing a request for revocation during opposition proceedings, nor does it prevent the opposition division from dealing with such requests (T 2177/12).

Since legal certainty demands clarity about the situation as regards intellectual protection rights, proceedings must be brought to an end as quickly as possible (T 1651/14; see also T 1960/12, T 1832/16, T 1467/16, T 757/17). In view of there being no text of the patent on the basis of which the board can consider the appeal, the only possibility is for the board to revoke the patent as envisaged, albeit for other reasons, in Art. 101 EPC (T 1467/16, see also T 1960/12, T 1832/16, T 757/17).

If the patent proprietor states in opposition or appeal proceedings that he no longer approves the text in which the patent was granted and will not be submitting an amended text, the patent is to be revoked. This is supported by Art. 113(2) EPC, which provides that a patent may be maintained only in a version approved by the patent proprietor. If there is no such version, one of the requirements for maintaining the patent is lacking (T 73/84, OJ 1985, 241, followed by numerous decisions, see e.g. recent decisions T 307/13 and T 1536/14, T 796/15).

If the patent proprietor himself requests that the patent be revoked, the decision to revoke the patent is given without substantive examination as to patentability. The examination as to whether the grounds for opposition laid down in Art. 100 EPC prejudice the maintenance of the patent becomes impossible since the absence of a valid text of the patent precludes any substantive examination of the alleged impediments to patentability (T 186/84, OJ 1986, 79; see also T 157/85, T 1659/07, T 124/08, T 1287/08, T 1111/10, T 796/15, T 1651/14).

In T 237/86 (OJ 1988, 261) the board stated that a direct request for revocation sufficed, whatever the form of the words, when it was made clear to the boards that appellant and respondent agreed that the patent should be revoked. In T 459/88 (OJ 1990, 425) the board stated that if, in proceedings before the EPO, the patent proprietor himself requested that his patent be revoked, there could scarcely be any more cogent reason for revoking it since it could not be in the public interest to maintain a patent against its proprietor's will. The patent was thus revoked by the board exercising its powers under Art. 111(1) EPC 1973 (see also the more recent decisions T 655/01, T 1187/05, T 1526/06, T 1610/07, T 1541/09).

There must be no doubt that the proprietor applying to have the patent revoked is requesting revocation with the consequences specified in Art. 68 EPC 1973 (Art. 68 EPC), namely the cancelling of the effects of the European patent application and the resulting patent as from the outset (T 186/84, T 347/90, T 386/01). Where the respondent (patent proprietor) states that the patent has been abandoned 'since' a particular date, this cannot be considered to be a request for revocation, as it does not indicate that the patent has been abandoned ab initio. The case law on requests for revocation therefore does not apply and the appeal must be examined as to its merits (T 973/92).

In T.237/86 (OJ 1988, 261) the statement "We herewith abandon the above patent" was held to be equivalent to a request for revocation to which the board could accede under Art. 111(1) EPC 1973 (see also T.347/90). In T.92/88 the words "the patent has been allowed to lapse in all designated states" were held to amount to a request for revocation.

In a number of cases the boards have decided that a request by a patent proprietor to withdraw "the application" amounted to a request to revoke the patent (T.264/84, T.415/87, T.68/90 and T.322/91). The board in T.393/15 pointed out that the basic rule nevertheless applied that any statement intended as such a request had to be clear and leave no room for doubt. In the specific case before it, a letter stating "the patent application is withdrawn" could not be considered clear, because (among other things) the numbers of the patent and the appeal case were missing.

In T.646/08 the appellant, in a letter, withdrew its appeal and at the same time withdrew its approval of the text of the patent as maintained by the opposition division in its interlocutory decision. The board held that the letter did not contain an unequivocal statement of the proprietor that he accepted the revocation of the patent with all the consequences specified in Art. 68 EPC. The appeal proceedings were terminated.

In T.2573/12 the proprietor had stated during proceedings before the opposition division that it wished to abandon the patent. The board held that the **wish** to abandon the patent did not constitute a clear and unambiguous request for abandonment, which would be construed as equivalent to a request for revocation (see T.237/86, OJ 1988, 261).

A number of cases concern the situation in which the opposition division revoked the patent, and the patent proprietor appealed, and then, in the course of the appeal proceedings, requested revocation of the patent. In T.347/90 the board dismissed the appeal without going into the substantive issues, so that the revocation of the patent by the department of first instance was confirmed. In T.18/92, by contrast, the request by the patent proprietor (appellant) for revocation of the patent was interpreted by the board as a withdrawal of the appeal. Withdrawal of the appeal meant that the first-instance decision revoking the patent took effect. In T.481/96 the board examined the two solutions and endorsed T.18/92. In T.1244/08 the board confirmed that according to established case law (see also T.1003/01 and T.53/03), if an appellant (patent proprietor) whose patent has been revoked by an opposition division states clearly and unambiguously that it is no longer interested in pursuing the appeal proceedings, that is tantamount to a statement withdrawing the appeal. The withdrawal had the effect of immediately terminating the appeal proceedings, such that the opposition division's revocation decision became final. Any later request to retract the withdrawal and continue appeal proceedings was inadmissible.

V. PROCEEDINGS BEFORE THE BOARDS OF APPEAL

A. Appeal procedure

1.	Legal character of appeal procedure	1281
1.1.	General	1281
1.2.	Rules of Procedure of the Boards of Appeal (RPBA)	1282
1.3.	Suspensive effect of the appeal	1283
1.3.1.	Definition of the suspensive effect of the appeal	1283
1.4.	Devolutive effect of the appeal	1284
1.5.	Accelerated processing before the boards of appeal	1285
2.	Filing and admissibility of the appeal	1286
2.1.	Transitional provisions for the EPC 2000	1287
2.2.	Appealable decisions	1287
2.2.1.	Departments	1287
2.2.2.	Whether there has been a decision	1288
a)	Examples of appealable decisions	1288
b)	Examples where the communication was not an appealable decision	1288
2.2.3.	Interlocutory decisions	1290
2.2.4.	Appeals against decisions of the boards of appeal	1291
2.3.	Board competent to hear a case	1292
2.3.1.	Technical or Legal Board of Appeal	1292
a)	General	1292
b)	Technical board of appeal competent	1292
c)	Legal Board of Appeal competent	1293
2.3.2.	Specific cases	1293
a)	Interruption of proceedings	1293
b)	Request for a search-fee refund	1293
c)	Interlocutory revision and reimbursement of appeal fee	1294
2.4.	Entitlement to appeal	1294
2.4.1.	Formal aspects under Article 107 EPC	1294
a)	Appeal filed by wrong company	1294
b)	Appeal filed in name of representative	1294
c)	Party consisting of plurality of persons	1295
d)	Company in receivership	1296
e)	Death of the appellant (opponent)	1296
2.4.2.	Party adversely affected (Article 107 EPC)	1296
a)	General	1296
b)	Patent applicant	1297
c)	Patent proprietor	1299
d)	Opponent	1300
2.4.3.	Procedural status of the parties	1302
a)	Parties to appeal proceedings	1302
b)	Rights of parties under Article 107 EPC	1304
c)	The boards' duty of impartiality in inter partes proceedings	1305
d)	Existence of a company	1305